ABHIJIT GANGULY, 60,
Judge of the Calcutta High Court



THE LONE SENTINEL OF JUSTICE

For the victims of the West Bengal teachers' recruitment scam, Justice Abhijit Ganguly has emerged as the final hope

Justice Abhijit Ganguly, who played a crucial role in unearthing the West Bengal teacher recruitment scam, began his career as a West Bengal Civil Service officer and worked in the land department. Later, he quit his job and began practising as a lawyer. Bikash Ranjan Bhattacharya, Rajya Sabha MP and top lawyer, remembers him as a sincere junior. "While working as a lawyer, he learnt how entrenched corruption is and now he is digging deep into its roots," he says. Lawyer Firdous Shamim remembers Ganguly for his wit and cultural interests. "He was into dramatics in his youth," says Shamim.

Ganguly was elevated as a judge in 2018 and gained notice in 2021 when the case related to irregularities in the recruitment of teachers came before him. From the beginning, Justice Ganguly was unsparing on the authorities involved in the alleged recruitment scam and came down heavily on two heavyweight ministers—former education minister Partha Chatterjee and current minister of state for the department of school education, Paresh Chandra Adhikary, whose daughter was illegally appointed as a teacher. He was vocal against the judgment of the division bench which stayed some of his orders, including the directive for a CBI probe.

When the division bench set aside his orders four times, he wrote a strong letter to the Chief Justice of India on April 13, 2022. "I don't understand who would benefit by tying the hands of a single-judge bench," read the letter. Meanwhile, TMC-affiliated lawyers gave a call for boycotting his bench, and unleashed veiled threats. Ganguly was unmoved. "You can hold a gun to my head and kill me if you want, but you cannot stop me from delivering justice," he said. When petitioners suspected foul play and tampering of evidence in the West Bengal School Service Commission office following the resignation of the chairman, Ganguly held a special hearing at 10.45 pm on May 18 and ordered CRPF personnel to be posted and CCTV footage to be preserved till the next chairman took charge.

There is also a softer side to the 60-year-old judge, who is set to retire in August 2024. After seeing a news clip on Soma Das, a cancer patient waiting to be recruited as a teacher, he sent his officers to bring her to his chamber. He ensured her that the government would recruit her, as she had got a high rank in the selection test. "Like a guardian, a father, he stood by us," says Soma. In another case, he fast-tracked the petition of 76-year-old Shyamali Ghosh, who had not received her pension for the past 25 years.

200,000 candidates took the test. By the end of 2017, results were declared but no merit list was published. Instead, each candidate was given online access to check her individual status. Later, the Calcutta High Court would observe that "not publishing a merit list was the first instance of illegality".

While candidates waited to be called for counselling, news spread that many undeserving candidates had been recruited, raising suspicion about the unpublished merit list. Angered applicants began sit-in protests, hunger strikes and moved court. On March 28, 2019, the Calcutta HC directed the WBSSC to make the merit list public. The commission failed to comply with the order, and the petitioners filed a contempt petition. On November 8, 2019, the court directed the WBSSC to file an affidavit, stating why its order was not complied with. The Covid lockdowns delayed the next hearing. In March 2021, the WBSSC agreed to make the list available. It had two categories of successful candidates—one empanelled, who were ready to be appointed, and those waitlisted, who would be moved up when vacancies arose.